

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Appeal No.8284 of 2023

In the matter of:

An application under section 30 of the Code of Criminal Procedure.

-And-

In the matter of:

Lutfar Rahman Munshi @ Tipu

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Muhammad Masud ul Haque, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 31st January 2024

This is an application under Section 498 of the Code of Criminal Procedure for bail.

In this case under Section 25_B 1(B) of the Special Power Act, 1974 about 15 kg gold was recovered from the possession

of the petitioner. In view of above materials on record we are not inclined to grant bail to the petitioner at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial of the case expeditiously.

Accordingly, we are directing the learned Metropolitan Special Tribunal No.16, Dhaka to conclude the trial of the case within 6(six) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

But if he fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why the trial could not be concluded and he shall also consider the petition for bail if any filed by the petitioners with sympathy and in accordance with law.

The Commissioner of Dhaka Metropolitan Police is directed to ensure that prosecution witnesses are produced before the Trial Court on the date to be fixed by the Court without any fail.

Let copies of this order be sent to the learned Metropolitan Special Tribunal No.16, Dhaka and the Commissioner of Dhaka Metropolitan Police at once.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER